

Kripa Shanker @ Kripal Pathak v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 August 2014 · Criminal Misc. Writ Petition No. 14697 of 2014 · **FIR quash refused; CrPC 41/41-A directed; compounding under Code available.**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. Where arrest has not been made and the offence will not entail sentence of more than seven years, police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioners, Kripa Shanker alias Kripal Pathak and another, sought quashing of an FIR dated 24 July 2014 registered as Case Crime No. 581 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Chopan, District Sonbhadra. Arrest had not been made. They argued that even if the charge were proved the sentence could not exceed seven years, so arrest should not be mechanical, and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

Section 135 FIR — quash, arrest safeguards and compounding

HOLDING

An FIR under Section 135 that discloses a cognizable offence will not be quashed. Arrest not having been effectuated, any arrest for an offence not entailing sentence of more than seven years must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the petitioners may seek the compounding remedy under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Quash of the s.135 FIR refused; future arrest, if made, tied to CrPC 41(1)(b)/41-A because sentence cannot exceed seven years; compounding left to the Supply Code 2005 if the offence is compoundable. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE IS IN FACT COMPOUNDABLE ON THESE FACTS

Court directed petitioners to the Supply Code 2005 remedy only if the offence is compoundable. ¶ 1